

25CV06730 Brendan Mackey et al vs American Family Connect Property and Casualty Insurance Company

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-07-27

Motion: Motions to Compel (4)

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Case Number

25CV06730

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 07/27/2026 - 10:00

Nature of Proceedings

Motions to Compel (4)

Tentative Ruling

Mackey, et al. v. American Family Connect Property and Casualty Insurance Co.

Case No. 25CV06730

Hearing Date: July 27, 2026

HEARING:

Motion to Compel Further Responses to Requests for Admission, Set One

Motion to Compel Further Responses to Form Interrogatories, Set One

Motion to Compel Further Responses to Special Interrogatories, Set One

Motion to Compel Further Responses to Request for Production of Documents, Set One

ATTORNEYS: For Petitioners Brendan Mackey individually and as guardian ad litem for Anya Mackey and Kilian Mackey, and Erin Mackey: Erin Mackey

For Respondent American Family Connect Property and Casualty Insurance Company: David Frishman, Jane G. Kuppermann, Tyson & Mendes, LLP

TENTATIVE RULING:

The motion of petitioners to compel further responses to requests for admission, set one, is granted, in part. On or before August 10, 2026, respondent American Family Connect Property and Casualty Insurance Company shall serve code compliant, verified further responses petitioners' requests for admission nos. 6 through 8, without the objections overruled herein except as to those based on the attorney-client privilege or work product doctrine. Except as herein granted, the motion is otherwise denied.

The motion of petitioners to compel further responses to form interrogatories, set one, is granted, in part. On or before August 10, 2026, respondent American Family Connect Property and Casualty Insurance Company shall serve code compliant, verified further responses petitioners' set one form interrogatory nos. 15.1, 16.5, and, as to each response to petitioners' set one requests for admissions that is not an unqualified admission, 17.1. Except as herein granted, the motion is otherwise denied.

The motion of petitioners to compel further responses to special interrogatories, set one, is denied.

The motion of petitioners to compel further responses to request for production of documents, set one, is denied.

Background:

Petitioners Erin Mackey (E Mackey), Brendan Mackey (B Mackey), Anya Mackey, a minor by their guardian ad litem Brendan, and Kilian Mackey, a minor by their guardian ad litem (collectively, the Petitioners), allege in this case that they are insured under a written automobile insurance contract issued by American Family Connect Property and Casualty Insurance Company (the Company) which contains underinsured motorist or "UIM" coverage. A dispute has arisen between Petitioners and the Company concerning the amount of UIM benefits due to Petitioners as a result of a motor vehicle collision that occurred in Santa Barbara, California, on April 15, 2023, and that caused Petitioners to sustain bodily injuries. The dispute is subject to arbitration under the terms of the policy.

Petitioners further allege that on February 21, 2025, they served the Company with a formal written demand for arbitration, and that Company has conditioned its participation in arbitration on the completion of discovery.

On October 24, 2025, Petitioners filed their verified petition against the Company to compel underinsured motorist arbitration.

On October 28, 2025, Petitioners separately filed four discovery motions (collectively, the October Discovery Motions): (1) for an order compelling the Company to provide full, complete, code-compliant responses, without objection, to set one form interrogatories (the Set One FI); (2) for an order compelling the Company to provide further responses to set one requests for admission (the Set One RFA); (3) for an order compelling the Company to provide verified, code-compliant further responses to set one requests for production of documents (the Set One RFP) nos. 1, 2, 5 through 8, and 10 through 16; and (4) for an order compelling the Company to provide complete, code compliant responses, without objection to set one special interrogatories (the Set One SI). Each of the four discovery motions requested an award of sanctions against the Company.

On December 1, 2025, the Company filed a verified answer and objections to the petition.

On February 10, 2026, the Company filed a response to the petition, asserting that it has agreed to move forward with arbitration but that Petitioners have not responded to discovery in good faith, and to the October Discovery Motions asserting that it served full and complete responses and supplemental responses to the Set One FI, the Set One RFA, the Set One RFP, and the Set One SI.

On March 2, the court, after a hearing, entered a minute order granting the petition; ordering the matter to arbitration as to damages; denying the October Discovery Motions as to the substantive discovery disputes without prejudice to the filing of a future motion to the extent the supplemental responses of the Company did not resolve the discovery issues; and granting the October Discovery Motions as to Petitioners' request for an award of monetary sanctions.

On April 1, Petitioners separately filed four discovery motions: (1) for an order compelling the Company to provide further responses to Set One RFA nos. 6 through 9, 18 through 22, and 26 through 29 (the RFA Motion); (2) for an order compelling the Company to provide full, complete, and code-compliant responses, without objection, to the Set One FI (the FI Motion); (3) for an order compelling the Company to provide full, complete, and code-compliant responses, without objection, to the Set One SI (the SI Motion); and (4) for an order compelling the Company to provide verified, code-compliant further responses to Set One RFP nos. 1, 2, 5 through 8, and 10 through 16 (the RFP Motion).

In support of the RFA Motion, E Mackey states that on March 10, 2026, they sent a formal meet and confer letter addressing the February 10, 2026, supplemental discovery responses of the Company. (E Mackey Dec., ¶ 9; Petitioners' Exhibits, exhibit 17.) In a March 17 letter responding to E Mackey's letter, the Company disputed that its February 10, 2026, supplemental responses were legally deficient. (E Mackey Dec., ¶¶ 10-11; Petitioners' Exhibits, exhibit 18.)

Petitioners have separately filed declarations of E Mackey in support of the FI Motion, the SI Motion, and the RFP Motion which contain the same information in regard to the supplemental responses of the Company to the Set One FI, Set One RFA, Set One RFP, and Set One SI as further described above. (E Mackey Dec. [FI Motion], ¶¶ 9-11; E Mackey Dec. [SI Motion], ¶¶ 9-10; & E Mackey Dec. [RFP Motion], ¶¶ 10-12.)

The Company has filed a combined opposition to the RFA Motion, the FI Motion, the SI Motion, and the RFP Motion.

Analysis:

(1) The RFA Motion

"On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both ... [a]nswer to a particular request is evasive or incomplete[]" or "[a]n objection to a particular request is without merit or too general." (Code Civ. Proc., § 2033.290, subd. (a)(1), (2).)

A motion under subdivision (a) of Code of Civil Procedure section 2033.290 "shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2033.290, subd. (b)(1).) The declaration of E Mackey and the

exhibits submitted in support of the RFA Motion and described above are sufficient to show “a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a).) In addition, “[t]he record of correspondence between the parties provides adequate support ... that the parties were at an impasse....” (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1294 (Clement).)

(a) Set One RFA nos. 6 through 8

Set One RFA nos. 6 through 8 ask the Company to admit that Petitioners sustained bodily injuries as a result of the “INCIDENT”, which is specially defined in the Set One RFA as “the motor vehicle collision that occurred on April 15, 2023, in which [Petitioners] were involved with Francisco Alanis Ascencion.” (Sep. Stmt. at pp. 5-6, 8, & 10.)

The separate statement submitted in support of the RFA Motion includes the supplemental responses of the Company to Set One RFA nos. 6 through 8, which state: “Responding Party objects to this Request for Admission on the grounds that it is vague, ambiguous, overbroad and premature as this Responding Party has not had adequate opportunity to investigate the matter involved in the request. Further, the Request invades attorney/ client privilege, attorney work product privilege and the request seeks premature disclosure of expert opinion in violation of Code of Civil Procedure sections 2034.210, 2034.220, and 2034.270. Further, this request calls for the legal conclusion and/or the expert opinions of a layperson and invades the province of a jury, which is the ultimate trier of fact.” (Sep. Stmt. at pp. 6-11.)

Because the supplemental responses of the Company to Set One RFA nos. 6 through 8 set forth above include only objections, the available information and evidence indicates or suggests that, as to those requests, notice of the RFA Motion was given within the time prescribed in Code of Civil Procedure section 2033.290. (Code Civ. Proc., § 2033.290, subd. (c).)

The reasons for compelling a further response to RFA nos. 6 through 8 listed in Petitioners’ separate statement include that the Company has paid benefits for injuries sustained by B Mackey in the incident; that the responses of the Company “willfully” ignore or evade facts regarding Petitioners’ injuries that are known to the Company and documented in its claim and payment files; that the process of finalizing a third-party minor’s settlement was predicated on the injuries referenced in the Set One RFA; and that, for these reasons, the Company cannot feign ignorance of Petitioners’ injuries. (Sep. Stmt. at pp. 7-9 & 11.)

In its response to the separate statement, the Company contends that its objections to RFA nos. 6 through 8 are well taken; that the question of whether Petitioners were injured requires expert medical opinion based on medical records, medical history, and an independent examination; and that the RFA Motion lacks any evidentiary support because Petitioners have failed to include copies of the Set One RFA, or the responses or supplemental responses of the Company, at issue. (Resp. Sep. Stmt. at pp. 3-4 & 6-7.)

The Company does not present any information or argument showing why Petitioners are required to include with the RFA Motion copies of the Company’s supplemental responses to the Set One RFA. Instead, and subject to exceptions which do not apply here, the California Rules of Court require only that the RFA Motion “be accompanied by a separate statement.” (Cal. Rules of Court, rule 3.1345(a).)

Further, a separate statement “is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue[]”, and must include the text of each request and each response at issue, including any further responses. (Cal. Rules of Court, rule 3.1345(c)(1), (2).) The Company also fails to explain, with citations to the record, why the separate statement submitted in support of the RFA Motion fails to include the text of RFA nos. 6 through 8, or of the Company’s responses or supplemental responses to those requests. (See also Opp. at p. 5 [referencing responses to the Set One FI, Set One FI, and Set One RFP, only].) For these and all further reasons discussed above, the Company has failed to show why the RFA Motion is inappropriate or without sufficient evidentiary support.

Each response to an admission request must “answer the substance of the requested admission, or set forth an objection to the particular request.” (Code Civ. Proc., § 2033.210, subd. (c).) Relevant here, “[i]f an objection is made to a request ..., the specific ground for the objection shall be set forth clearly in the response.” (Code Civ. Proc., § 2033.230, subd. (b).)

As to the objections of the Company to RFA nos. 6 through 8, the party resisting discovery bears the burden to show cause justifying its objections by “supplying supporting evidence....” (Williams v. Superior Court (2017) 3 Cal.5th 531, 549 (Williams); see also West Pico Furniture Co. of Los Angeles v. Superior Court (1961) 56 Cal.2d 407, 422 (West Pico) [objecting party must “show cause why the questions are not within the purview of the code section”].) The Company also presents no information, evidence, or argument “showing the quantum of work required” to respond to Set One RFA nos. 6 through 8, or why there exists “an intent to create an unreasonable burden or that the ultimate effect of the burden is incommensurate with the result sought.” (West Pico, supra, 56 Cal.2d at p. 417.) In addition, “some burden is inherent in all demands for discovery.” (Id. at p. 418.)

The Company also presents no facts showing why Set One RFA nos. 6 through 8 were “interposed for improper purposes” or “why the questions are not within the purview of the code section.” (Coy v. Superior Court (1962) 58 Cal.2d 210, 220; West Pico, supra, 56 Cal.2d at p. 422; see also Williams, supra, 3 Cal.5th at p. 538 [the right to discovery is “broad” and “construed liberally....”].)

Further, “since admission requests are made for the purpose of expediting the trial, the ‘fact that the request is for the admission of a controversial matter, or one involving complex facts, or calls for an opinion, is of no moment.’ [Citation.]” (Hillman v. Stults (1968) 263 Cal.App.2d 848, 887.) Moreover, the court’s review of Set One RFA nos. 6 through 8 does not show that those requests seek only “contentions, conclusions or legal arguments instead of facts” regarding the injuries or damages allegedly sustained by Petitioners. (Flora Crane Service, Inc. v. Superior Court (1965) 234 Cal.App.2d 767, 782 (Flora Crane).)

For all reasons discussed above, the Company has failed to show why Set One RFA nos. 6 through 8 are vague, ambiguous, overbroad, premature, or seek disclosure of expert opinion or legal conclusions. (See also Cembrook v. Superior Court (1961) 56 Cal.2d 423, 427–428 [discussing objections].) Therefore, and for these reasons, the court will overrule the objections of the Company to those requests, except as to those based on the attorney-client privilege or work product doctrine.

Because the supplemental responses of the Company to Set One RFA nos. 6 through 8 include only objections which the court will overrule, those responses fail to “[a]dmit so much of the matter involved in [each] request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party[]”, to [d]eny so much of the matter involved in the request as is untrue[]”, or to “[s]pecify so much of the matter involved in the request as to the truth of which [Respondent] lacks sufficient information or knowledge.” (Code Civ. Proc., § 2033.220, subd. (b)(1), (2), (3).) For these and all further reasons discussed above, the court will grant the RFA Motion as to Set One RFA nos. 6 through 8, and require the Company to provide verified further responses to those requests without the objections overruled herein.

(b) Set One RFA nos. 9, 18 through 22, and 26 through 29

For the reasons discussed below, the court will deny the RFA Motion as to Set One RFA nos. 9, 18 through 22, and 26 through 29.

Petitioners’ separate statement shows or suggests that the Company did not serve a supplemental response to Set One RFA nos. 9, 19, and 20. (Sep. Stmt. at pp. 12, 15, & 16.) With respect to the Company’s original responses to those requests, the separate statement incorporates the term “Specific Boilerplate Objections” by reference in each separate statement of the reasons for compelling further responses to Set One RFA nos. 9, 19, and 20. That term is specially defined in the separate statement as a “representative example” of all of the “Specific Boilerplate Objections” which Petitioners contend are frivolous and without merit. (Sep. Stmt. at pp. 4-5.)

For each of the Set One RFA nos. 9, 19, and 20, the separate statement must include “[t]he text of each response, answer, or objection....” (Cal. Rules of Court, rule 3.1345(c)(2).) “Material must not be incorporated into the separate statement by reference.” (Cal. Rules of Court, rule 3.1345(c).) Because the separate statement as to Set One RFA nos. 9, 19, and 20 incorporates by reference the specially defined term “Specific Boilerplate Objections” into each statement of the reasons for compelling a further response to those requests, and fails to specify which, if any, of those objections were asserted in each of the Company’s responses, the RFA Motion fails, for all reasons discussed above, to comply with court rules.

For the same reasons discussed above, the incorporation by reference of a specially defined term that does not include all of the information required under California Rules of Court, rule 3.1345(c), in regard to Set One RFA nos. 9, 19, and 20, results in an inadequate separate statement which fails to sufficiently state the “factual and legal” reasons for compelling further responses “as to each matter in dispute[.]” (Cal. Rules of Court, rule 3.1345(c)(3).) This procedural deficiency, and the confusion created by the failure to include the text of each objection to Set One RFA nos. 9, 19, and 20 as required by California Rules of Court, rule 3.1345, is a sufficient basis to deny the RFA Motion. (Mills v. U.S. Bank (2008) 166 Cal.App.4th 871, 893.)

Notwithstanding the deficiencies described above, the substantive responses of the Company to Set One RFA nos. 9, 19, and 20 are sufficient. For example, to the extent the Company asserts a lack of information or knowledge as a reason for any failure to admit all or part of Set One RFA nos. 9, 19, or 20, the Company’s answers to those requests must state that a reasonable inquiry concerning the matter in each particular request has been made, and that the information known or readily obtainable is insufficient to enable Company to admit the matter. (Code Civ. Proc., § 2033.220, subd. (c).) The substantive responses of Company to Set One RFA nos. 9, 19, and 20 include that statement. (See Sep. Stmt. at pp. 12, 14 & 16.)

The RFA Motion also does not show why the supplemental response of Company to Set One RFA no. 18, which asks Company to admit that, on or about April 21, 2023, it denied Petitioners’ request for a copy of a “Traffic Collision Report”, fails to “[a]dmit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by” Company, or is not “complete and straightforward....” (Code Civ. Proc., § 2033.220, subd. (a), (b)(1).) For example, in that response, the Company admits that Petitioners were told that the Traffic Collision Report “had been ordered but not received and ... cannot be shared with the insureds.” (Sep. Stmt. at p. 13.)

As to Set One RFA nos. 21 and 22, the separate statement contains the same deficiencies described above in regard to the incorporation of a specially defined term that contains incomplete information regarding the text of each of the Company’s objections to those requests.

Furthermore, in its supplement response to Set One RFA no. 21, the Company denies that it issued subpoenas in this matter, and admits that its counsel attempted to issue subpoenas but no responses were had due to Petitioners’ objections. (Sep. Stmt. at p. 17.) In its supplemental response to Set One RFA no. 22, the Company admits that there was no pending civil action against it in any California Superior Court as described in that request. (Sep. Stmt. at pp. 18-19.) The same reasoning and analysis apply. For the same reasons discussed above, the supplemental responses of the Company to Set One RFA nos. 21 and 22 are sufficient.

In addition, and considering that the Company has clearly denied that it issued subpoenas in this matter notwithstanding whether Company also admits that its counsel issued or attempted to issue subpoenas, the court cannot “force a litigant to admit any particular fact if he is willing to risk a perjury prosecution or financial sanctions.” (Holguin v. Superior Court (1972) 22 Cal.App.3d 812, 820 & fn. 11.)

Though the separate statement as to Set One RFA nos. 26 through 29 contains the same deficiencies in regard to the incorporation by reference of the specially defined term “Specific Boilerplate Objections” further discussed above, the supplemental responses of the Company to those requests, which ask the Company to admit that certain documents including a “California Highway Patrol Traffic Collision Report”, the declarations page of Aspire General Insurance Company for Francisco Alanis Ascencion, a payment check issued to Petitioner, and a letter from the Company to Petitioners are, respectively, true copies of official records, business records, or original records, substantially comply with subdivision (c) of Code of Civil Procedure section 2033.220, subdivision (c). (See Sep. Stmt. at pp. 19, 21, 22-23, & 24 [asserting lack of

information or knowledge and the making of a reasonable inquiry, among other things].)

Furthermore, as Set One RFA nos. 26 through 29 require or effectively require the Company to verify or admit the authenticity of various documents that do not appear to have been prepared by the Company, and to admit the genuineness of documents which the responses of Company suggest or indicate were not attached to the Set One RFA, the RFA Motion fail to explain why, under these circumstances, the responses of Company are deficient. (See, e.g., Evid. Code, § 1400 et seq.; *Ramos v. Westlake Services LLC* (2015) 242 Cal.App.4th 674, 684 [discussing authentication of a writing]; Code Civ. Proc., § 2033.060, subd. (g) [requiring that the “party requesting an admission of the genuineness of any documents shall attach copies of those documents to the requests....”].)

For all reasons discussed above, the court will deny the RFA Motion as to Set One RFA nos. 9, 18 through 22, and 26 through 29.

(c) Sanctions

The RFA Motion requests an order imposing monetary sanctions against the Company and its counsel of record. “The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2033.290, subd. (d).)

E Mackey asserts that, as a result of the Company’s conduct, they have expended 7 hours analyzing Company’s responses to the Set One RFA described above, and to meet and confer and prepare the RFA Motion, and that they anticipate expending an additional 2.5 hours to prepare a reply and to prepare for and attend the hearing. (E Mackey Dec., ¶ 12.) E Mackey further states that Petitioners will incur approximately \$100 in costs to file and serve the RFA Motion. (*Ibid.*)

Considering that Petitioners were partially successful in making the RFA Motion as to three of the Set One RFA that are at issue, and the Company successfully opposed that motion as to ten of the Set One RFA that are at issue, the court finds that, under the totality of the circumstances present here, the imposition of monetary sanctions would be unjust.

(2) The FI Motion

“(a) On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply:

“(1) An answer to a particular interrogatory is evasive or incomplete.

“(2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate.

“(3) An objection to an interrogatory is without merit or too general.” (Code Civ. Proc., § 2030.300, subd. (a)(1), (2), (3).)

For the same reasons discussed above, the declaration of E Mackey submitted in support of the FI Motion is sufficient to show a reasonable and good faith attempt to informally resolve the issues presented, and that the parties reached an impasse. (Code Civ. Proc., § 2030.300, subd. (b)(1), & § 2016.040; *Clement*, supra, 177 Cal.App.4th at p. 1294.)

The interrogatories that are at issue in the FI Motion are Set One FI nos. 15.1, 16.2 through 16.10, 17.1, and 50.1 through 50.6. (Memorandum at p. 7; Sep. Stmt. at pp. 5-6, 8-22, 24, & 29-37.)

Preliminary, in its combined opposition, the combined opposition of the Company asserts that the separate statement submitted in support of the FI Motion omits material portions of the Company's response to Set One FI no. 15.1. (Opp. at pp. 2 & 5.) For these reasons, the Company contends, the supporting separate statement is incomplete and misleading, justifying a denial of the FI Motion.

With its combined opposition, Company submits a table of exhibits and request for judicial notice, to which is attached a copy of the supplemental responses of the Company to the Set One FI, which shows that the supplemental response of the Company to Set One FI no. 15.1 is "Not applicable." (Table of Exhibits & RJN, exhibit E at p. 25.) The separate statement submitted in support of the FI Motion also lists Company's supplemental response to Set One FI no. 15.1 as "Not applicable." (Sep. Stmt. at p. 6.) For these reasons, the Company has failed to show why the separate statement submitted in support of the FI Motion is not full or complete as to the supplemental response of Company to Set One FI no. 15.1.

Though the combined opposition of the Company does not show why the separate statement as to Set One FI no. 15.1 is incomplete as to the response to that interrogatory, to the extent the separate statement incorporates incomplete material by reference regarding the specially defined term "Specific Boilerplate Objections" in the same manner further described and discussed above, the same reasoning and analysis apply, justifying a denial of the FI Motion.

(a) Set One FI no. 15.1

Set One FI no. 15.1 asks the Company to, among other things, identify "each denial of a material allegation and each special or affirmative defense in your pleadings...." (Sep. Stmt. at pp. 5-6.) Though the Company has filed in this case, an answer to the petition as further described above which includes a general denial and asserts affirmative defenses, the Company's supplemental response states that Set One FI no. 15.1 is not applicable. (Sep. Stmt. at p. 6.)

Notwithstanding whether the Company has filed any pleadings in the arbitration or whether the affirmative defenses asserted in the answer described above concern arbitrability, the text of Set One FI no. 15.1 is not, by its express language, limited to the pleadings submitted by the Company in the arbitration. For these and all further reasons discussed above, the court will grant the FI Motion as to Set One FI no. 15.1, and will order the Company to serve a code compliant, verified further response to that request.

(b) Set One FI nos. 16.2 through 16.10

Set One FI nos. 16.2, 16.3, 16.4, 16.6, 16.7, and 16.8 ask the Company to state whether it makes certain contentions including that Petitioners were not injured; that their injuries were not caused by the incident at issue; that any services furnished by any "HEALTH CARE PROVIDER", as that term is specially defined in the Set One FI, or any property damage claimed by Petitioners were not caused by the incident at issue; or that any part of the loss of earnings, income, or property damages claimed by Petitioners was unreasonable or not caused by the incident at issue. (Sep. Stmt. at pp. 8, 9, 11, 15, 17, & 19.) In its supplemental responses to those interrogatories, which do not include objections, the Company states or effectively states that it is not making those contentions at this time. (Sep. Stmt. at pp. 9, 10, 12, 16, 18, & 19.)

Set One FI no. 16.9 asks the Company to state whether it or anyone acting on its behalf has any "DOCUMENT", as that term is specially defined in the Set One FI, concerning claims for personal injuries made before or after the incident at issue by any of the Petitioners; and if so, to state "(a) the source of each DOCUMENT; (b) the date each claim arose; (c) the nature of each claim; and (d) the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT." (Sep. Stmt. at pp. 20-21.) In its supplemental response to Set One FI no. 16.9, the Company states "Yes", and lists the source of each document as "ISO Claimsearch"; the date each claim arose as "12/7/2020; 4/15/2023; 8/16/2023"; the nature of each claim as "automobile"; and the name, address, and telephone number of the person who has each document as "unknown." (Sep. Stmt. at p. 21.)

Set One FI no. 16.10 asks Company whether it or anyone acting on its behalf have any document concerning the past or present physical, mental, or emotion condition of Petitioners from a "HEALTH CARE PROVIDER" not previously identified by the Company. (Sep. Stmt. at p. 22.) In its supplemental response, which also includes no objections, the Company states "No." (Ibid.)

Considering the substance of the Company's supplemental responses to Set One FI nos. 16.2 through 16.4 and 16.6 through 16.10 described above, the FI Motion does not show that those responses contain unmeritorious objections or "boilerplate" responses which are evasive or incomplete. (Code Civ. Proc., § 2030.300, subd. (a)(1), (3); *Best Products, Inc. v. Superior Court* (2004) 119 Cal.App.4th 1181, 1190.) In addition, apart from generally asserting in a conclusory fashion that the Company's supplemental responses are false, the FI Motion does not present any information, evidence, or argument showing why those responses are untruthful.

Instead, and for the reasons described above, the supplemental responses of the Company to Set One FI nos. 16.2 through 16.4 and 16.6 through 16.10 provide the information sought to be discovered in regard to whether the Company makes the contentions or is in possession of the information or documents described in those interrogatories. (Code Civ. Proc., § 2030.210, subd. (a)(1).) For these and all further reasons discussed above, the court will deny the FI Motion as to Set One FI nos. 16.2 through 16.4 and 16.6 through 16.10.

Set One FI no. 16.5 asks whether the Company contends that any costs for services furnished by any health care provider and claimed by Petitioners as damages in these proceedings were not necessary or unreasonable. (Sep. Stmt. at p. 13.) Though the Company did not provide a supplemental response to Set One FI no. 16.5, the Company asserts in its responding separate statement that "a supplemental response was inadvertently omitted[]", and that it "will serve a supplemental response to this interrogatory that is identical to its earlier supplemental responses: 'This contention regarding the Claimants is not being made at this time, subject to further development of the claimed injuries and extent of injuries. Discovery and investigation are continuing.'" (Resp. Sep. Stmt. at p. 13.)

The court interprets the statement of the Company as to Set One FI no. 16.5 set forth above as a concession that a further response to that interrogatory is appropriate and warranted. For these reasons, the court will grant the FI Motion as to Set One FI no. 16.5, and require the Company to serve a code compliant, verified further response to that interrogatory.

(c) Set One FI no. 17.1

Set One FI no. 17.1 states: "Is your response to each request for admission served with these interrogatories an unqualified admission? If not, for each response that is not an unqualified admission: (a) state the number of the request; (b) state all facts on which you base your response; (c) state the names, ADDRESSES, and telephone numbers of all PERSONS who have knowledge of those facts; and (d) identify all DOCUMENTS and other tangible things that support your response and state the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT or thing." (Sep. Stmt. at p. 24, capitalization unchanged.)

As the court will, for all reasons discussed above, grant the RFA Motion as to Set One RFA nos. 6 through 8, the court will grant the FI Motion as to Set One FI no. 17.1 as to those requests.

In addition, the supplemental response of the Company to Set One FI no. 17.1 is wholly deficient. For example, that response fails to separately state the number of each Set One RFA; to provide the information requested as to each response of the Company that is not an unqualified admission; to state all facts on which the Company bases each of those responses; to identify any supporting documents; or to state the name, address, or telephone number of each person who has each document. (See, e.g., Sep. Stmt. at pp. 26-28.) Instead, the supplemental response of Company to Set One FI no. 17.1 combine each of the Set One RFA, and repeat verbatim or nearly verbatim, the Company's responses to those requests. (Ibid.)

For all reasons discussed above, the supplemental response of the Company to Set One FI no. 17.1 does not “contain[] the information sought to be discovered[]”, does not appear to be “as complete and straightforward as the information reasonably available to [Company] permits[]”, and appears “evasive or incomplete.” (Code Civ. Proc., § 2030.210, subd. (a)(1); § 2030.220, subd. (a); § 2030.300, subd. (a)(1).) Therefore, and for these reasons, the court will grant the FI Motion as to Set One FI no. 17.5, and order the Company to serve a verified, code compliant further response to that interrogatory as to each supplemental response to the Set One RFA that is not an unqualified admission.

(d) Set One FI nos. 50.1 through 50.6

Set One FI no. 50.1 asks the Company to, for each agreement alleged in the pleadings, “(a) identify each DOCUMENT that is part of the agreement and for each state the name, ADDRESS, and telephone number of each PERSON who has the DOCUMENT; (b) state each part of the agreement not in writing, the name, ADDRESS, and telephone number of each PERSON agreeing to that provision, and the date that part of the agreement was made; (c) identify all DOCUMENTS that evidence any part of the agreement not in writing and for each state the name, ADDRESS, and telephone number of each PERSON who has the DOCUMENT; (d) identify all DOCUMENTS that are part of any modification to the agreement, and for each state the name, ADDRESS, and telephone number of each PERSON who has the DOCUMENT; (e) state each modification not in writing, the date, and the name, ADDRESS, and telephone number of each PERSON agreeing to the modification, and the date the modification was made; (f) identify all DOCUMENTS that evidence any modification of the agreement not in writing and for each state the name, ADDRESS, and telephone number of each PERSON who has the DOCUMENT.” (Sep. Stmt. at p. 29, capitalization unchanged.)

In its supplemental response to Set One FI no. 50.1, the Company states that the only applicable contract is the insurance policy; lists in subpart (a) the “Auto Policy issued by [Company] Policy No. BX00397031[]”; and as to subparts (b) through (f), states “none”. (Sep. Stmt. at p. 30, capitalization and punctuation unchanged.) The same reasoning and analysis in regard to Set One FI nos. 16.2 through 16.4 and 16.6 through 16.10 set forth above apply here. For the same reasons further discussed above, the court will deny the FI Motion as to Set One FI no. 50.1.

Set One FI nos. 50.2, 50.3, 50.4, 50.5, and 50.6 ask the Company to state whether there was a breach of any agreement alleged in the pleadings; whether performance of any such agreement was excused; whether any such agreement was terminated by mutual agreement, release, accord and satisfaction, or novation; and whether any such agreement is unenforceable or ambiguous. (Sep. Stmt. at pp. 31-32, 33-34, & 36-37.) The supplemental responses of the Company to each of those interrogatories is “No.” (Sep. Stmt. at pp. 32, 33, 35, 36, & 37.) For the same reasons further discussed above, the court will deny the FI Motion as to Set One FI nos. 50.2 through 50.6.

(e) Sanctions

The FI Motion includes a request for an award of sanctions against the Company and its counsel of record. “The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

The same reasoning and analysis apply here. As the parties were each partially successful in making or opposing the FI Motion, with Petitioners successfully making that motion as to 3 of the 17 interrogatories at issue, the court finds the imposition of sanctions against the Company or its counsel under the circumstances present here would be unjust under the totality of the circumstances present here.

(3) The SI Motion

As further discussed below, there exist procedural deficiencies which warrant a denial of the SI Motion.

"A motion concerning interrogatories ... must identify the interrogatories ... by set and number." (Cal. Rules of Court, rule 3.1345(d).) Though the SI Motion identifies the Set One SI at issue by their set, that motion fails to identify each of the Set One SI at issue by their number, which forces the court and the Company to search through the fifty page separate statement submitted in support of the SI Motion to determine the number of each Set One SI at issue.

Furthermore, the failure to identify each of the Set One SI at issue by their number prevents the court and the Company from understanding the specific order requested in the SI Motion. (*Kinda v. Carpenter* (2016) 247 Cal.App.4th 1268, 1277 [discussing purpose of notice requirements].) In addition, by omitting information describing the specific number of each Set One SI at issue in the SI Motion, the notice of that motion is "ineffective in doing what a notice is meant to do." (*Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 138.) For these reasons, the deficiencies in the SI Motion raise due process concerns.

For all reasons discussed above, and as the SI Motion fails to comply with California Rules of Court, rule 3.1345(c), there exists a sufficient basis to deny that motion.

In addition, the Company asserts in its combined opposition that the separate statement submitted in support of the SI Motion omits material portions of Set One SI nos. 5, 6, and 8. (Opp. at p. 5, ¶ 3.) In the same manner described above, the separate statement submitted in support of the SI Motion incorporates the specially defined term "Specific Boilerplate Objections" which includes only a "representative example" of objections that are ostensibly repeated in multiple responses to each Set One SI. (See, e.g., Sep. Stmt. at pp. 3-4 [definition of "Specific Boilerplate Objections"] & 6, 11-14, 16-18, 20-22, 24, 26, 27, 29, 30 [incorporating the term "Specific Boilerplate Objections" as to Company's supplemental response to Set One SI nos. 1 & 5-19].) As further discussed above, the separate statement fails to include the text of each of the Company's objections to each of the Set One SI at issue.

For the same reasons discussed above, the incorporation of a specially defined term that provides only a representative example of various objections asserted by the Company in multiple responses, without stating the specific objections asserted to each specific Set One SI at issue, results in a separate statement that is inadequate, incomplete, and fails to state the "factual and legal" reasons for compelling further responses "as to each matter in dispute[.]" (Cal. Rules of Court, rule 3.1345(c)(3).) That lack of completeness forces the court and the Company to review other documents to determine the full request and the full response. (See Cal. Rules of Court, rule 3.1345(c).)

The court further notes that the supplemental response of the Company to the Set One SI include an objection as to the "propriety" of those interrogatories which is not included in the separate statement, and objections that the Set One SI are overbroad and improperly extend to legal advice. (Company's Table of Exhibits & RJN, exhibit D at p. 2; see also Sep. Stmt. at pp. 4.) For the reasons discussed below, the present record indicates or suggest that the Set One SI fail to comply with code requirements, and that the Company's objections on the basis of the propriety or scope of the Set One SI, including whether they seek legal contentions, may be meritorious.

"Each interrogatory shall be full and complete in and of itself." (Code Civ. Proc., § 2030.060, subd. (b).) "No specially prepared interrogatory shall contain subparts, or a compound, conjunctive, or disjunctive question." (Code Civ. Proc., § 2030.060, subd. (f).) The purpose of these requirements, which apply where a question covers more than one subject or references or incorporates other materials or documents, " 'is to prevent questions worded so as to require more information than could be obtained by 35 separate questions.' ... [Citation.]" (*Clement*, supra, 177 Cal.App.4th at pp. 1288, 1290-1291.)

Set One SI no. 1 asks the Company to identify each person "who participated in any manner in the handling, investigation, evaluation, or determination of the CLAIM, stating for each person: full name, current or last known business address, telephone number, employer at the time, job title, and a description of the person's specific role with respect to the CLAIM." (Sep. Stmt. at p. 6, capitalization unchanged.) The term "CLAIM" is specially defined in the Set One SI as "UIM Claim Number 01-006-023383, and all related claims, investigations, evaluations, negotiations, communications, and payments arising out of the INCIDENT." (Sep. Stmt. at p. 5, ¶ E, capitalization unchanged.)

Set One SI no. 2 asks the Company to, “[f]rom April 15, 2023, to the present, provide a chronological narrative of all actions, communications, and decisions by [the Company] concerning the CLAIM, including for each event the date, the persons involved, and a description of all supporting DOCUMENTS.” (Sep. Stmt. at p. 8, capitalization unchanged.)

Set One SI no. 5 asks the Company to state all facts and identify all documents that the Company relied upon when its adjuster “represented to [Petitioners] on May 18, 2023 that the \$1,000 deductible ‘will apply at this time’ because the third party carried ‘absolutely no liability insurance.’” (Sep. Stmt. at p. 11.)

Set One SI no. 6 asks the Company to identify each new fact or document it obtained between May 18 and June 5, 2023, that resulted in Company’s “issuance of a payment that included the \$1,000 deductible, and state the person(s) responsible for making that determination.” (Sep. Stmt. at p. 12.)

Set One SI no. 7 asks the Company to identify all facts and documents upon which it “bases any contention that [the Company’s] communications between May 16, 2023 and June 5, 2023 regarding the Collision Deductible Waiver were reasonable, consistent, and in compliance with California law, including Insurance Code section 790.03, subdivision (h).” (Sep. Stmt. at p. 13.)

Set One SI no. 9 asks the Company to state all facts and identify all documents “upon which [the Company] based its December 4, 2024 written statement threatening to close the CLAIM file for ‘lack of contact from claimant since August 30.’” (Sep. Stmt. at p. 15.)

Set One SI no. 11 asks the Company to state “with particularity, every fact, medical record, legal authority, and witness testimony that supports [Company’s] contention that the total value of [B] Mackey’s damages resulting from the INCIDENT is less than the \$250,000 UIM per person policy limit. For each item identified provide the date, source, and IDENTIFY all supporting documents.” (Sep. Stmt. at p. 18, capitalization unchanged.)

Set One SI no. 13 asks the Company to state “with particularity, every fact, medical record, legal authority, and witness testimony that supports [Company’s] contention that the total value of [Redacted Claimant] damages resulting from the INCIDENT is less than the \$250,000 UIM per person policy limit. For each item identified provide the date, source, and IDENTIFY all supporting documents. (Sep. Stmt. at pp. 20-21, capitalization unchanged.)

Because the text of Set One SI nos. 1, 2, 5, 6, 7, 9, and 11 refer to or incorporate other materials or documents and are compound and conjunctive, those interrogatories fail to comply with code requirements further discussed above. (Clement, *supra*, 177 Cal.App.4th at p. 1290.) In addition, and as further discussed above, to the extent the requests for “legal authority” contained in the Set One SI effectively seek the legal contentions, conclusions, or arguments of the Company only and not facts, the SI Motion fails to show why the objections of the Company described above are unmeritorious, or why the supplemental responses are deficient. (Flora Crane, *supra*, 234 Cal.App.2d at pp. 781–782.)

The separate statement submitted in support of the SI Motion also shows that the Company asserted objections to the Set One SI on the basis that the interrogatories are overbroad. (Sep. Stmt. at p. 4; *Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 431-432 [discussing “overbroad interrogatories”].) In regard to that objection, Petitioners “may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.010.) “For discovery purposes, information is relevant if it ‘might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement....’ [Citation.] Admissibility is not the test and information, unless privileged, is discoverable if it might reasonably lead to admissible evidence.” (*Gonzalez v. Superior Court* (1995) 33 Cal.App.4th 1539, 1546, original italics.)

In the petition filed in this case and described above, Petitioners sought an order compelling the Company to proceed with arbitration pursuant to subdivision (f) of Insurance Code section 11580.2. That section “was designed to minimize losses to the people of California who are involved in accidents with uninsured or financially irresponsible motorists, and ... requires

that the insured be protected against damages for bodily injury caused by an uninsured motorist in the same territory in which the policy covers him for liability.” (Mission Ins. Co. v. Brown (1965) 63 Cal.2d 508, 510.)

“[T]he only issue for which the right to arbitrate is assured in an uninsured motorist arbitration is the determination whether the insured is legally entitled to recover damages from the uninsured motorist, and, if so, the amount.” (Miranda v. 21st Century Ins. Co. (2004) 117 Cal.App.4th 913, 925.) “Absent language in the insurance agreement expanding the issues to be arbitrated [citation], underinsured motorist arbitrations contemplate only two issues—‘whether the insured shall be legally entitled to recover damages, and if so entitled, the amount thereof.’ [Citation.] In this context, the term ‘damages’ refers to the amount of damages the insured is entitled to recover from the underinsured motorist; ‘it does not include determination of the extent of coverage and the amount of money the insurance company is obligated to pay the insured.’” [Citations.]” (Storm v. Standard Fire Ins. Co. (2020) 52 Cal.App.5th 636, 643.) “Issues of bad faith breach of the insurance contract are beyond the scope of the UIM arbitration.” (Glassman v. Safeco Ins. Co. of America (2023) 90 Cal.App.5th 1281, 1311, fn. 15.)

For all reasons discussed above, the discovery sought in the Set One SI, including those described above, does not appear to be relevant to the subject matter involved in this action. For example, the Set One SI seek to discover information regarding each person who handled, investigated, or determined the “CLAIM”, which is specially defined to include, among other things, all payments arising out of the subject incident; a narrative of the Company’s conduct concerning the “CLAIM”; the Company’s issuance of payment to Petitioners; whether the Company’s communications regard a “Collision Deductible Waiver” were reasonable, consistent, or in compliance with Insurance Code section 790.03; the reasons for a purported refusal by the Company to provide a copy of a “Traffic Collision Report”; a purported threat by the Company to close the “CLAIM” file; and the Company’s contentions as to whether any treatments were not medically necessary, among other things. (Sep. Stmt. at p. 5, ¶ E, & pp. 6, 8, 12-15, & 33.)

Considering the scope of the subject matter described in the Set One SI, the limited issues which are the subject of this action, and the objections asserted by the Company to the Set One SI as further discussed above, the SI Motion fails to show why each of the objections of the Company are not meritorious, why the responses or supplemental responses of the Company are deficient, or why the information sought in the Set One SI will lead to admissible evidence or assist Petitioners to evaluate their case, prepare for arbitration, or facilitate settlement.

The examples provided above are intended to be illustrative but not exhaustive. For all reasons discussed above, the court will deny the SI Motion.

(4) The RFP Motion

The court has reviewed the separate statement submitted in support of the RFP Motion, which contains the same issues and deficiencies described above including in regard to the incorporation by reference of the specially defined term “Specific Boilerplate Objections” and whether the Set One RFP at issue are relevant to the subject matter of this action. (See, e.g., Sep. Stmt. at pp. 3-4 [“representative example” of objections], 9 [incorporating term “Specific Boilerplate Objections” and requesting a certified copy of the policy], 13 [seeking documents in regard to a collision deductible], 14 [regarding the Company’s purported threat to close the claim file], 18 [seeking documents relating to the issuance of subpoenas].) Based on the court’s review of that statement, and the text of each of the Set One RFP at issue, the same reasoning and analysis apply.

In addition, “[a]lthough the scope of civil discovery is broad, it is not limitless.” (Calcor Space Facility, Inc. v. Superior Court (1997) 53 Cal.App.4th 216, 223 (Calcor).) Relevant here, the RFP Motion must “set forth specific facts showing good cause justifying the discovery sought” in Set One RFP nos. 1, 2, 5 through 8, and 10 through 16 at issue in that motion. (Code Civ. Proc., § 2031.310, subd. (b)(1).)

The separate statement includes no facts showing good cause justifying the discovery sought in each of the Set One RFP at issue. Further, though the memorandum submitted in support of the RFP Motion includes a section purporting to show good cause for the requested production, the overly general and conclusory assertions of Petitioners that the documents as a whole are relevant and material are insufficient and fail to identify any specific facts as to each of the Set One RFP at issue.

In the absence of those specific facts, and considering the issues further discussed above in regard to the subject matter of this action and the scope of the Set One RFP at issue, "the justifications offered for the production are mere generalities." (Calcor, supra, 53 Cal.App.4th at p. 224.)

The same reasoning and analysis apply here. For all reasons discussed above, the court will deny the RFP Motion.

(5) The Company's request for judicial notice

In support of its combined oppositions to the RFA Motion, the FI Motion, the SI Motion, and the RFP Motion, the Company requests judicial notice of its supplemental responses to the Set One RFA, the Set One FI, the Set One SI, and the Set One RFP; of the Company's privilege log; of the verified petition filed by Petitioners in this case including the declaration of E Mackey; of Company's verified answer and objections to that petition; and of a repair estimate. (RJN at p. 2, ll. 4-21 & exhibits A-H.)

Though not necessary, the court will grant the Company's request for judicial notice of the verified petition of Petitioners and the E Mackey declaration, and of the Company's verified answer and objections to that petition. (Evid. Code, § 452, subd. (d)(1).)

As the supplemental responses of the Company to the discovery requests at issue, the privilege log, and the repair estimate are not proper subjects of judicial notice, the court will deny the Company's request as to those materials. (Evid. Code, §§ 450, 451, 452 & 453.)

(6) The Company's objections to E Mackey declaration and exhibits

The Company also submits objections to the declarations of E Mackey submitted in support of the RFA Motion, the FI Motion, the SI Motion, and the RFP Motion. The court considers only that evidence which is admissible and relevant to the issues presented.

Judges

Judge Colleen Sterne

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